



General Assembly

February Session, 2026

Raised Bill No. 5307

LCO No. 1709



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING THE PROVISION OF NOTICE TO A PARENT
OR GUARDIAN OF A MINOR CHILD WHO HAS RECEIVED
PREGNANCY-RELATED HEALTH CARE SERVICES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 19a-601 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) Prior to the performance of an abortion upon a minor, a physician
4 or counselor shall provide pregnancy information and counseling in
5 accordance with this section in a manner and language that will be
6 understood by the minor. The physician or counselor shall:

7 (1) Explain that the information being given to the minor is being
8 given objectively and is not intended to coerce, persuade or induce the
9 minor to choose to have an abortion or to carry the pregnancy to term;

10 (2) Explain that the minor may withdraw a decision to have an
11 abortion at any time before the abortion is performed or may reconsider
12 a decision not to have an abortion at any time within the time period
13 during which an abortion may legally be performed;

14 (3) Explain to the minor the alternative choices available for
15 managing the pregnancy, including: (A) Carrying the pregnancy to term
16 and keeping the child, (B) carrying the pregnancy to term and placing
17 the child for adoption, placing the child with a relative or obtaining
18 voluntary foster care for the child, and (C) having an abortion, and
19 explain that public and private agencies are available to assist the minor
20 with whichever alternative she chooses and that a list of these agencies
21 and the services available from each will be provided if the minor
22 requests;

23 (4) Explain that public and private agencies are available to provide
24 birth control information and that a list of these agencies and the
25 services available from each will be provided if the minor requests; and

26 [(5) Discuss the possibility of involving the minor's parents, guardian
27 or other adult family members in the minor's decision-making
28 concerning the pregnancy and whether the minor believes that
29 involvement would be in the minor's best interests; and]

30 [(6)] (5) Provide adequate opportunity for the minor to ask any
31 questions concerning the pregnancy, abortion, child care and adoption,
32 and provide information the minor seeks or, if the person cannot
33 provide the information, indicate where the minor can receive the
34 information.

35 (b) After the person provides the information and counseling to a
36 minor as required by this section, such person shall have the minor sign
37 and date a form stating that:

38 (1) The minor has received information on alternatives to abortion
39 and that there are agencies that will provide assistance and that a list of
40 these agencies and the services available from each will be provided if
41 the minor requests;

42 (2) The minor has received an explanation that the minor may
43 withdraw an abortion decision or reconsider a decision to carry a

44 pregnancy to term;

45 (3) The alternatives available for managing the pregnancy have been
46 explained to the minor;

47 (4) The minor has received an explanation about agencies available
48 to provide birth control information and that a list of these agencies and
49 the services available from each will be provided if the minor requests;

50 (5) The minor has [discussed with the person providing the
51 information and counseling the possibility of involving the minor's
52 parents, guardian or other adult family members in the minor's
53 decision-making about the pregnancy] received an explanation of the
54 notification requirements set forth in section 2 of this act;

55 (6) If applicable, the minor has determined that not involving the
56 minor's parents, guardian or other adult family members is in the
57 minor's best interests; and

58 (7) The minor has been given an adequate opportunity to ask
59 questions.

60 (c) The person providing the information and counseling shall also
61 sign and date the form and shall include such person's business address
62 and business telephone number. The person shall keep a copy for such
63 minor's medical record and shall give the form to the minor or, if the
64 minor requests and if such person is not the attending physician,
65 transmit the form to the minor's attending physician. Such medical
66 record shall be maintained as otherwise provided by law.

67 (d) The provision of pregnancy information and counseling by a
68 physician or counselor which is evidenced in writing containing the
69 information and statements provided in this section and which is signed
70 by the minor shall be presumed to be evidence of compliance with the
71 requirements of this section.

72 (e) The requirements of this section shall not apply when, in the best

73 medical judgment of the physician based on the facts of the case before
74 him, a medical emergency exists that so complicates the pregnancy or
75 the health, safety or well-being of the minor as to require an immediate
76 abortion. A physician who does not comply with the requirements of
77 this section by reason of this exception shall state in the medical record
78 of the abortion the medical indications on which his judgment was
79 based.

80 Sec. 2. (NEW) (*Effective October 1, 2026*) (a) In addition to the provision
81 of information and counseling required under section 19a-601 of the
82 general statutes, as amended by this act, after performing an abortion,
83 the health care provider authorized to perform such abortion under
84 section 19a-602 of the general statutes, or a counselor as defined in
85 section 19a-600 of the general statutes, shall explain and carry out the
86 following notification procedures to parents, guardians or other
87 individuals:

88 (1) Except as provided in subdivision (2) of this subsection, notice
89 shall be provided to at least one parent or guardian of a pregnant
90 unemancipated minor not less than forty-eight hours after the
91 performance of an abortion upon such minor;

92 (2) If a pregnant unemancipated minor declares in a signed written
93 statement that such minor is a victim of sexual abuse, neglect or physical
94 abuse by either a parent or guardian, the notice required pursuant to
95 subdivision (1) of this subsection shall be provided to such minor's
96 sibling who is aged twenty-one years or older or a stepparent or
97 grandparent specified by such minor or, if no such person exists, to
98 some other person who is aged twenty-one years or older specified by
99 such minor; and

100 (3) If the health care provider authorized to perform the abortion
101 pursuant to section 19a-602 of the general statutes, or a counselor, as
102 defined in section 19a-600 of the general statutes, receives a signed
103 statement pursuant to subdivision (2) of this subsection, such provider

104 or counselor shall certify in the minor's medical record that such
105 individual or counselor has received such statement. Such provider or
106 counselor, who relies in good faith on such statement, shall not be civilly
107 or criminally liable for failure to give the notice required pursuant to
108 subdivision (1) of this subsection.

109 (b) Any parent or guardian of a minor child who does not receive
110 notice of the performance of an abortion in accordance with the
111 provisions of this section shall not be liable for the costs of pregnancy-
112 related health care services, examination or treatment provided to the
113 minor child.

114 Sec. 3. Section 19a-919 of the general statutes is repealed. (*Effective*
115 *October 1, 2026*)

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	19a-601
Sec. 2	<i>October 1, 2026</i>	New section
Sec. 3	<i>October 1, 2026</i>	Repealer section

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Statement of Purpose:

To ensure that the parent or guardian of a minor is provided notice of the minor child having received pregnancy-related health care services.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]